

Handling Treatment Gaps in the Demand Phase

Impact of Treatment Gaps

Treatment gaps can significantly affect the value and credibility of a personal injury case because insurance adjusters may argue that:

- The injuries were minor or resolved
- The client was not truly in pain
- Treatment was unnecessary or excessive
- Another event caused the current symptoms
- The client failed to mitigate damages

 **Even short unexplained gaps can weaken settlement leverage and are a common reason for claim denial.**

Possible Outcomes of Unaddressed Gaps

Reduced Settlement Offers

Adjusters may lower the value of:

- Pain and suffering
- Future treatment claims
- Permanency allegations

Denial of Certain Medical Bills

Insurers may refuse to pay for treatment occurring after the gap.

Increased Litigation Risk

Large or repeated gaps may cause:

- More aggressive defense challenges
- Requests for IMEs (Independent Medical Exams)
- Higher chance of disputed causation

Credibility Issues

Inconsistent treatment timelines can create concerns regarding:

- Symptom severity
- Client reliability
- Medical necessity



Proactive Case Management: Preventing Gaps

Maintaining accurate treatment timelines is essential to clearly link medical care to the accident, strengthen the claim, and provide reliable documentation for negotiations or trial.

✓ 1. Create a Clear Medical Chronology

The medical chronology serves as the foundation for the medical summary and allows for the entire medical journey to be seen in order.

- Review appointment timelines, provider records, billing dates, and referral delays.
- The chronology is the primary tool to easily detect gaps or inconsistencies in the records.

✓ 2. Coordinate Treatment and Support

The treating phase is often the longest part of a personal injury case, requiring careful tracking.

- Coordinate care across multiple providers to prevent conflicting treatments and ensure consistent recovery.
- Track and monitor clients' treatments and appointments to maintain case credibility, as delays in seeking treatment significantly weaken the case.
- Medical liens can be used to allow clients to continue treatment without out-of-pocket payments while awaiting a settlement.

👉 **Careful tracking of medical treatment and bills is essential because insurance negotiations depend on complete and accurate records.**



Strategies for Handling Existing Treatment Gaps

✓ 1. Obtain and Document a Valid Reason

Document valid explanations for any interruption, as a documented explanation is better than silence:

- Financial hardship
- Transportation limitations
- Work schedule conflicts or inability to miss additional workdays
- Insurance authorization delays or denials
- Delayed specialist referrals
- Temporary symptom improvement

- Family emergencies

✓ 2. Support the Explanation with Comprehensive Evidence

Whenever possible, include specific documentation to back up the explanation:

- **Medical Evidence:** Provider notes (SOAP notes), Emergency Medical Services (EMS) reports, Hospital/Emergency room reports, Imaging (MRI, X-ray), and specialist evaluations.
- **Scheduling/Admin Records:** Scheduling records, referral delay communications, insurance denials or authorization issues.
- **Client Records:** Client statements, employment conflicts, or documentation of financial hardship.

✓ 3. Show Continuity of Symptoms

The goal is to show the injury never truly resolved and that complaints remained consistent before and after the gap.

- Emphasize recurring complaints before and after the interruption.
- Highlight continued pain or functional limitations.
- Reference objective findings (MRI, imaging, specialist evaluations) to reinforce the injury's severity.

Addressing the Gap Directly in the Demand Package

One of the biggest mistakes is pretending the treatment gap does not exist. A direct and well-supported explanation helps control the narrative before the adjuster uses the gap against the claim.

1. Acknowledge the Gap Clearly

Do not hide or avoid discussing the interruption. Transparency strengthens credibility.

- Identify the specific time period of the gap (e.g., “temporary interruption between March 2 and April 10, 2026”).
- State that treatment was interrupted and address it professionally and factually.

2. Explain the Circumstances Behind the Gap

Provide context to humanize the interruption and show it was reasonable under the circumstances.



LEGAL SUPPORT HELP

Example: “The interruption resulted from delayed authorization for specialty care and the client’s inability to miss additional workdays during that period.”

3. Reconnect the Treatment Timeline

Show that the client resumed treatment, and the care progression continued appropriately, preventing the adjuster from arguing the injury was resolved.

- Show that symptoms continued and complaints remained consistent.
- Use follow-up provider notes, continued pain complaints, MRI/imaging findings, and physical therapy progress reports as evidence.

Example: “Upon resuming care, the client continued reporting neck pain, headaches, and reduced range of motion consistent with prior documented complaints.”

4. Reinforce Medical Necessity

Tie the resumed treatment back to the accident-related injuries and ongoing objective findings.

- This helps defend all medical bills, future care recommendations, and pain and suffering claims.

Example: “The continued course of treatment remained medically necessary due to persistent cervical complaints supported by MRI findings and physician evaluations.”



Strategic Goal in the Demand Package

A strong demand package does not aim for a “perfect” case. Instead, it:

- Anticipates defense arguments
- Addresses weaknesses proactively
- Preserves credibility
- Reduces adjuster leverage
- Protects overall settlement value

 **A transparent and detailed explanation often carries more weight than attempting to avoid the issue entirely.**